

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

-----X

KELCEY MARRERO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER B. DIAZ #963010
and POLICE OFFICER "JOHN DOE",

Defendants.

-----X

To the above named Defendant(s)

Index #

Date Filed:

Plaintiff designates

COUNTY OF THE BRONX

as the place of trial

Basis of venue is

Location of Occurrence

SUMMONS

Location of Occurrence

688 East Gun Hill Road

Bronx, NY

COUNTY OF THE BRONX

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Flushing, New York
November 30, 2021



THE ORLOW FIRM

By: Brian S. Orlow

Attorney for Plaintiff

OFFICE & P.O. ADDRESS

71-18 Main Street

Flushing, NY 11367

(718) 544-4100

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10001

POLICE OFFICER B. DIAZ #963010
411 Laconia Avenue
Bronx, NY 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

Index #

-----X
KELCEY MARRERO,

Filed

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER B. DIAZ #963010 and
POLICE OFFICER "JOHN DOE"

Defendants.
-----X

The Plaintiff, complaining of the Defendants, by his attorney, THE ORLOW FIRM, respectfully shows to this Court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. Upon information and belief, THE NEW YORK CITY POLICE DEPARTMENT, is a subdivision of the defendant, THE CITY OF NEW YORK.

3. Upon information and belief, that at all times hereinafter mentioned the Defendant, THE CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York, including all the police officers thereof.

4. Upon information and belief, that at all times hereinafter mentioned, and on or prior to the 9th day of April, 2021, POLICE OFFICER B. DIAZ #963010, was employed by the defendant, NEW YORK CITY POLICE DEPARTMENT, as a Police Officer.

5. Upon information and belief, that at all times hereinafter mentioned, and on or prior to the 9th day of April, 2021, POLICE OFFICER "JOHN DOE", was employed by the defendant, NEW YORK CITY POLICE DEPARTMENT, as a Police Officer.

6. That a Notice of the Plaintiff's claim, including the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose, was duly served upon The New York City Comptroller's Office, on or about the 1st day of July, 2021.

7. That a hearing pursuant to section 50H of the General Municipal Law was held on October 22, 2021.

8. That more than 30 days have elapsed since the Notice of Claim has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

9. That this action is commenced within one year and 90 days after the causes of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST AND IMPRISONMENT**

10. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 9 with the same force and effect as if more fully set forth herein.

11. That on or about the 9th day of April, 2021, at 688 East Gunhill Road, County of The Bronx, in the City and State of New York, the defendants, their agents, servants and employees improperly detained plaintiff, KELCEY MARRERO.

12. That on or about the 9th day of April, 2021, the Defendant, POLICE OFFICER B. DIAZ #963010, wrongfully and falsely accused the Plaintiff, KELCEY MARRERO, of a crime.

13. That on or about the 9th day of April, 2021, the Defendant, POLICE OFFICER "JOHN DOE", wrongfully and falsely accused the Plaintiff, KELCEY MARRERO, of a crime.

14. That the said arrest and imprisonment was caused by the Defendants, their agents, servants and employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the Plaintiff was in fact guilty of such a crime.

15. While the Plaintiff was so engaged, as aforesaid, the Defendants, their agents, servants and employees, wrongfully and unlawfully, against the Plaintiff's wish, without probable or reasonable cause, and on the sole charge, then made, that Plaintiff was violating the penal law of the state of New York in that he committed the aforesaid crime, arrested and imprisoned the Plaintiff and with full force of arms, they forcibly and violently seized, and laid hold of and compelled Plaintiff to go with the said Defendant, POLICE OFFICER B. DIAZ #963010, to be detained and imprisoned in or near premises known and designated as the 47th Precinct located in the County of The Bronx, City and State of New York and at Central Booking after that.

16. While the Plaintiff was so engaged, as aforesaid, the Defendants, their agents, servants and employees, wrongfully and unlawfully, against the Plaintiff's wish, without probable or reasonable cause, and on the sole charge, then made, that Plaintiff was violating the penal law of the state of New York in that he committed the aforesaid crime, arrested and imprisoned the Plaintiff and with full force of arms, they forcibly and violently seized, and laid hold of and compelled Plaintiff to go with the said Defendant, POLICE OFFICER "JOHN DOE", to be detained and imprisoned in or near premises known and designated as the 47th Precinct located in the County of The Bronx, City and State of New York and at Central Booking after that.

17. That the Defendants, their agents, servants and employees, acting within the scope of their authority and within the scope of their employment, detained and imprisoned the Plaintiff even though the Defendants, their agents, servants and employees, knew, had the opportunity to know, or should have known, that the allegations against the Plaintiff were wrongful, unlawful and without a sufficient basis in fact.

18. That the Plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the Defendants, their agents, servants and employees and was forced by the Defendants to submit to the aforesaid arrest and imprisonment thereto entirely against her will.

19. That the Defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the Plaintiff; in that the Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

20. That by reason of the false arrest, imprisonment and detention of the Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

21. That by reason of the actions of the Defendants as aforesaid, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR NEGLIGENCE

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 21 with the same force and effect as if more fully and at length set forth herein.

23. That the Defendant, THE CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, POLICE OFFICER B. DIAZ #963010; in that the said Defendant's employee lacked the experience, deportment and ability to be employed by the Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee who lacked the mental capacity and the ability to function as the employees of the aforementioned Defendants; in that the Defendant, THE CITY OF NEW YORK, failed to investigate the above named Defendant's background, in that the Defendant lacked the maturity, sensibility and intelligence to be employed by the Defendant; in that the Defendant knew of the lack of ability, experience, deportment and maturity of said Defendant employee when it hired him to be an employee; and, in that the Defendant, its agents, servants and employees were otherwise careless, negligent and reckless.

24. That the Defendant, THE CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, POLICE OFFICER "JOHN DOE"; in that the said Defendant's employee lacked the experience, deportment and ability to be employed by the Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee who lacked the mental capacity and the ability to function as the employees of the aforementioned Defendants; in that the Defendant, THE CITY OF NEW YORK, failed to investigate the above named Defendant's background, in that the Defendant lacked the maturity, sensibility and intelligence to be employed by the Defendant; in that the Defendant knew of the lack of ability, experience, deportment and maturity of said Defendant employee when it hired him to be an employee; and, in that the Defendant, its agents, servants and employees were otherwise careless, negligent and reckless.

25. That the aforesaid occurrence, to wit: the false arrest and imprisonment and the resulting injuries to mind and body of Plaintiff therefrom, were caused wholly and solely by reason of the negligence of the Defendant, THE CITY OF NEW YORK, its agents, servants and employees, in negligently hiring and retaining Defendants, POLICE OFFICER B. DIAZ #963010 and POLICE OFFICER "JOHN DOE", without any negligence on the part of the Plaintiff.

26. That by reason of the aforementioned, Plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting her necessary affairs and business, and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

27. That by reason of the negligence of the Defendants as aforesaid, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENCE

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully and at length set forth herein.

29. That the Defendants, its agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named POLICE OFFICER B. DIAZ #963010, to act as reasonably, prudent police officer; failed to give him proper instruction as to their deportment, behavior and conduct as representatives of their employers; and, in that the Defendants, its agents, servants and employees were otherwise reckless, careless and negligent.

30. That the Defendants, its agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named POLICE OFFICER "JOHN DOE", to act as reasonably, prudent police officer; failed to give them proper

instruction as to their deportment, behavior and conduct as representatives of their employers; and, in that the Defendants, its agents, servants and employees were otherwise reckless, careless and negligent.

31. That the aforesaid occurrence, to wit: the false arrest and imprisonment and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, its agents, servants and employees without any negligence on the part of the Plaintiff.

32. That by reason of the false arrest and illegal imprisonment of the Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with a crime, and greatly injured in her credit and circumstances and was then and there prevented and hindered from performing and transacting their necessary affairs and business, and she was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

33. That by reason of the negligence of the Defendants as aforesaid, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

AS AND FOR A FORTH CAUSE OF ACTION
FOR NEGLIGENCE

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth herein.

35. That the Defendants, POLICE OFFICER B. DIAZ #963010, POLICE OFFICER "JOHN DOE" and the Defendant, THE CITY OF NEW YORK, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful detective and police officer would have used under similar circumstances in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation, in that they were negligent, careless and reckless in the manner in which they performed, controlled and conducted their investigation; and in that the Defendants, its agents, servants and employees were otherwise careless, reckless and negligent.

36. That the aforesaid occurrence, to wit: the false arrest and illegal imprisonment and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, its agent, servants and employees without any negligence on the part of the Plaintiff.

37. That by reason of the aforesaid, Plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting her necessary affairs and business, and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

38. That by reason of the negligence of the Defendants as aforesaid, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all other courts which would

otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
PURSUANT TO 42 USC. SEC.1983

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully and at length set forth herein.

40. That on or about 9th day of April, 2021, Plaintiff, KELCEY MARRERO was lawfully and properly at 688 East Gunhill Road, in the County of The Bronx, City and State of New York, at which time and place Defendants then and there were at, as part of their regular and official employment as police officers for the Defendant, THE CITY OF NEW YORK.

41. As Plaintiff was lawfully and properly on aforesaid street, the aforementioned officer who, having the real and apparent power and authority to arrest and imprison the Plaintiff, did so.

42. Immediately thereafter, aforementioned Defendants, POLICE OFFICER B. DIAZ #963010 and POLICE OFFICER "JOHN DOE", falsely arrested and illegally imprisoned the Plaintiff, and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, to wit:

a) in that all of the actions of the Defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the Plaintiff, to arrest, restrain and imprison the Plaintiff without his consent; the Plaintiff was at all times conscious of the arrest, did not consent to the false arrest and the false arrest and illegal imprisonment were not otherwise privileged; and,

b) the arrest and imprisonment were not justified by probable cause or other legal privilege; Defendant, their agents, servants and employees, acting under the color of statute, ordinances, regulations, customs and usages of the State and City of New York, and under the authority of their office as detectives for said City, falsely charged the Plaintiff with the aforesaid crime although the Defendant, acting in such capacity, knew that such charges were false; and,

c) that the Defendant, THE CITY OF NEW YORK, its agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the above mentioned police officer; that their hiring practices, the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants, and :

d) the failure of the Defendant, THE CITY OF NEW YORK, its agents, servants and employees to hire, train, supervise, discipline or in any other way control the Defendants, POLICE OFFICER B. DIAZ #963010 and POLICE OFFICERS "JOHN DOE #1-10", in the exercise of their functions; in that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens

of the State and City of New York including the Plaintiff; and,:

e) due to the acts of the Defendants, its agents, servants and employees herein, the failure of the City of New York to discipline and properly hire the Defendants and the continued employment of the Defendants presents a clear and present danger to the citizens of the City and State of New York; and,

f) that the said prosecution and criminal charges and hearings were instituted and procured by the Defendants, their agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceedings by the Defendants against the Plaintiff was without probable cause with actual malice and was terminated in favor of the Plaintiff; and,

g) that the Defendants, their agents, servants and employees permitted the use of policy and/or drafted policy that was in violation of the constitutional rights of the above named Plaintiff; and, in that each and all of the acts of the Defendants, their agents, servants and employees alleged herein were done not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, and the City of New York and under the authority of their office as detective and police officers for said state and city.

h) Plaintiff did not commit any illegal act, either before or at the time he were falsely arrested and imprisoned, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. § 1983 and the Constitution of the State of New York.

i) As a direct result of the illegal actions and conduct on the part of the Defendants, their agents, servants and employees, Plaintiff was falsely arrested and imprisoned and confined for a period of over 22 hours and was then released.

43. That at all times hereinafter mentioned, the Defendants were employed in their respective capacities by the Defendant, THE CITY OF NEW YORK, were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

44. That at all times hereinafter mentioned, Defendant, POLICE OFFICER B. DIAZ #963010, was acting pursuant to orders and directives from Defendant, THE CITY OF NEW YORK.

45. That at all times hereinafter mentioned, Defendants, POLICE OFFICER "JOHN DOE, were acting pursuant to orders and directives from Defendant, THE CITY OF NEW YORK.

46. That during all times hereinafter mentioned, the Defendant detective and police officers, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and the Defendant here, separately and in concert, engaged in the illegal conduct here mentioned to the injury of the Plaintiff, KELCEY MARRERO and deprived Plaintiff of the rights, privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States.

47. The police officers and Defendant, THE CITY OF NEW YORK, and its individual members who are agents, servants and employees of Defendant, together with persons unknown to Plaintiff, acting under color of law, have subjected Plaintiff and other persons to a pattern of conduct consisting of illegal harassment, false imprisonments and arrests and malicious prosecution in the County of The Bronx, City and State of New York, in denial of rights, privileges and immunities guaranteed Plaintiff, KELCEY MARRERO and other citizens by the Constitution of the United States.

48. This systematic pattern of conduct consists of a large number of individual acts of violence, intimidation, false arrest and false imprisonment and malicious prosecution visited on Plaintiff, KELCEY MARRERO and other citizens by members of the police department of Defendant THE CITY OF NEW YORK, acting in concert with persons unknown to Plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which a Police officer may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

49. Although Defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the Defendant, THE CITY OF NEW YORK, has not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

50. The unlawful and illegal conduct of the Defendants, its agents, servants and employees and each of them, deprived Plaintiffs of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

a) The right of Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right of Plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and,

c) The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

51. That by reason of the aforesaid violations, false arrest and false imprisonment, caused by the Defendants, their agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided in the Constitution of the United States of America, and provided in the Constitution of the State of New York, and laws thereto, the Defendants, their agents, servants and employees violated 42 U.S.C. § 1983 in that the Defendants, their agents, servants and employees

acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the Plaintiff, KELCEY MARRERO thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging Plaintiff.

52. That by reason of the aforesaid intentional acts, including the false arrest and false imprisonment, malicious prosecution and deprivation of rights and liberties as guaranteed by the aforementioned constitutions, by the Defendants, its agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the Plaintiff suffered conscious pain and suffering, and he was otherwise damaged.

53. That by reason of the actions of the Defendants as aforesaid, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

Dated: Flushing, New York
November 30, 2021



THE ORLOW FIRM
By: Brian S. Orlow
Attorneys for Plaintiff
Office and P.O. Address
71-18 Main Street
Flushing, New York 11367

Re: Marrero, K.

ATTORNEY VERIFICATION

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am the attorney of record for the Plaintiff in the within action; I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof, the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by the Plaintiff is that the Plaintiff currently resides in a County other than the County in which our office is located. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: Information based on our office file.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Flushing, New York
November 30, 2021



BRIAN S. ORLOW

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

KELCEY MARRERO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER B. DIAZ #963010
and POLICE OFFICER "JOHN DOE",

Defendants.

SUMMONS & VERIFIED COMPLAINT

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